

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S
MOTION TO PRODUCE DOCUMENTS
IMPROPERLY WITHHELD AS PRIVILEGED**

I. INTRODUCTION

Complainant China United Lines, Ltd. (“China United” or “Complainant”), by and through its undersigned counsel, hereby moves to compel the production of documents by Respondent Amazon.com Services LLC (“Respondent” or “Amazon”). This Motion to Compel (the “Motion”) seeks relief from Amazon’s improper withholding of responsive documents, including documents wrongly designated as privileged, and sets forth: (1) China United’s good-faith efforts to meet and confer and obviate the need for this Motion; (2) deficiencies in Amazon’s Privilege Log; and (3) the legal and factual grounds supporting compelled production, as required by 46 C.F.R. § 502.150.

Amazon has produced hundreds of pages of documents relating to its decision to terminate China United "for convenience", including lengthy internal memos on the topic. However, Amazon has produced only a handful of documents regarding its termination "for cause" of Amazon, claiming that almost all of those documents are shielded by the attorney-client privilege. This is hard to believe, given the fact that an Amazon senior executive testified that the decision to terminate "for cause" was a "business decision". In addition, China United is distrustful of Amazon's claims of privilege because, in Amazon's initial productions of documents, Amazon produced duplicate documents wherein one document was reacted for privilege while the other was not, and it was clear from the *unredacted* version that the document was *not privilege*. China United respectfully requests that Amazon be ordered to produced those documents that are allegedly privileged, or that the Presiding Officer conduct an in *camera* review of the allegedly privileged documents.

Under Federal Maritime Commission ("FMC") discovery practice, privilege is construed narrowly, and the party asserting privilege bears the burden of establishing that it applies. Consistent with federal law applied by the Commission, only communications whose primary purpose is to seek or provide legal advice are protected; communications reflecting business, commercial, or operational advice are not. Amazon nevertheless has withheld documents reflecting internal discussions and advice concerning whether and how to terminate the parties’

contract – communications that, on their face, concern commercial strategy and business decision-making, not legal counsel. Advice regarding whether to terminate a contract, how to manage contractual counterparties, or how to mitigate commercial risk constitutes business advice and does not become privileged merely because an attorney is copied or involved.

By improperly designating such business communications as confidential or privileged, Amazon has prevented China United from obtaining discovery directly relevant to the core issues in this proceeding, including Amazon’s decision-making process and asserted justifications for its purported termination "for cause". The Commission’s discovery rules do not permit a party to shield non-privileged business records through overbroad privilege assertions.

This Motion is supported by the Declaration of Bryce M. Cullinane (“Cullinane Declaration”) and the exhibits attached thereto. Specifically, after raising these issues with Amazon’s counsel on October 16, 2025, November 4, 2025, and January 8, 2026 (see Cullinane Decl. ¶¶ 3, 5, 8, Exs. A, C) and despite extensive meet-and-confer efforts, Amazon has refused to cure its improper privilege withholdings. China United therefore brings this Motion and respectfully requests that it be granted in its entirety.

II. LEGAL STANDARD

The Commission’s Rules entitle parties to discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. *See* 46 C.F.R. § 502.141(e)(1). “In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. “A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.” *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009); *see also, e.g., Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (“a party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance);

Champion Foodservice, LLC v. Vista Food Exchange, Inc., No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (excluding evidence as a sanction against party whose “purported ‘compliance’ [with its discovery obligations] has been based on its own self-serving definition . . . of what constitutes relevant discovery under the Federal Rules” and “applying its own contrived interpretation of what the discovery rules require”).

III. ARGUMENT

This Motion is brought based upon Amazon’s failure to produce or removed text redactions withheld based on an improper claim of the attorney-client privilege. Amazon’s privilege log is attached to the accompanying Cullinane Declaration as Exhibit E. The Presiding Officer should compel Amazon to produce documents and information in its privilege log because it fails to meet its burden to show privilege.

As a threshold matter, documents and information evidencing Amazon’s search for and discovery of any alleged breach of confidentiality by China United are relevant and, importantly, *not* privileged. China United sent meet and confer correspondence to Amazon regarding its improper privilege log on October 16, 2025 and November 4, 2025. Cullinane Decl., ¶¶ 3, 5, Ex. A, C. During a phone conference between counsel held on January 8, 2026, counsel for Amazon stated that almost the entirety of Amazon’s decision to terminate “for cause” was a legal decision, and not a business decision. Cullinane Decl., ¶ 8. The party claiming the privilege bears the burden of proving the existence of the privilege. As explained in *In re Grand Jury Proceedings* 88–9:

The party claiming the privilege must generally establish the following elements: (1) the holder of privilege is a client; (2) the person to whom communication was made is a member of the bar and that person is acting as a lawyer in connection with the communication; (3) the communication relates to a fact of which attorney was informed by the client without the presence of strangers for the purpose of securing legal advice; and (4) the privilege is claimed and not waived by the client.

899 F.2d 1039, 1042 (11th Cir.1990); *see also* Fed. R. Civ. P. 26(b)(5). As such, the party asserting the privilege must produce a privilege log “that identified for *each* separate documents the following information: the date, the author and all recipients, along with their capacities, the

subject matter of the document, the purpose for its production, and a specific explanation of why the document is privileged.” *Schmalz v. Village of North Riverside* 2018 WL 741395 (N.D. Ill. 2018). Amazon has not met its burden because it failed to establish these four elements.

First, Amazon produced a privilege log that only identifies information without any further explanation, only including vague descriptions without title/roles of non-attorney participants in violation of both Federal Rule 26(b) and Judge Wirth’s January 23, 2025 Order referencing the same. Cullinane Decl., ¶ 7, Ex. E; *see also Aviles v. S&P Glob., Inc.* 583 F.Supp. 3d 499, 504 (S.D.N.Y. 2022) (“The Court finds that the non-attorney individuals and their roles should be identified. The roles of the individuals are not privileged and would aid Plaintiffs in assessing the asserted privilege claims.”). Therefore, the Commission should reject Amazon’s claim of privilege for this reason alone. *See Stopka v. Am. Family Mut. Ins.*, 816 F. Supp. 2d 516, 527 (N.D. Ill. 2011) (granting motion to compel where privilege log failed to show how the attorney-client privilege applied to each non-attorney email at issue); *see also Schmalz v. Village of North Riverside* 2018 WL 741395 (N.D. Ill. 2018) (the court rejected defendants’ claim of privilege because defendants failed to provide enough information in the privilege log to allow the court to determine “whether the documents were prepared for the purpose of legal advice, or whether they were intended to be confidential.”).

Second, and importantly, a communication is not necessarily privileged simply because a company lawyer is copied. Rather, regarding the second element, Amazon must show, irrespective of whether one or more lawyers sent or received the communication, that the communication was confidential *and that the primary purpose of the communication was to relay, request or transmit legal advice.* *United States v. Davita, Inc.*, 301 F.R.D. 676, 682 (N.D. Ga. 2014), *on reconsideration in part*, No. 1:07-CV-2509-CAP-JSA, 2014 WL 11531065 (N.D. Ga. May 21,

2014); *U.S. ex rel. Baklid-Kunz v. Halifax Hosp. Med. Cen.*, 6:09-cv-1002-Orl-31TBS, 2012 WL 5415108, at *4 (M.D.Fla. Nov. 6, 2012). Thus, “[w]here a lawyer provides non-legal business advice, the communication is not privileged.” *Wachtel v. Health Net, Inc.*, 482 F.3d 225, 231 (3rd Cir.2007); *see also United States v. Philip Morris, Inc.* 2004 WL 7372160 (D.D.C Sep. 7, 2004) (“[D]ocuments provided to an attorney to keep counsel informed, without an implied request for legal advice, will not be privileged.”).

Third and similarly, because the privilege only applies to communications made in confidence, a communication loses its protection if made in the presence of third parties, *see id.*, or disseminated beyond the group of corporate employees “who have a need to know in the scope of their corporate responsibilities.” *In re Vioxx Products Liab. Litig.*, 501 F.Supp.2d 789, 811 (E.D.La.2007); *see also F.T.C. v. GlaxoSmithKline* 294 F.3d 141, 147 (D.D.C. 2002) (“[t]he applicable standard is . . . whether the documents were distributed on a ‘need to know’ basis or to employees that were ‘authorized to speak or act’ for the company.”); *Jessore Mgmt. SA v. Brit Syndicate* 2987, 2021 WL 4037849, at *14 (S.D.N.Y. Sept. 3, 2021) (finding defendants’ categorical privilege log deficient for failing to sufficiently identify 21 individuals whose communications were asserted to be protected by the attorney-client privilege.); *Aviles v. S&P Glob., Inc.*, 583 F. Supp. 3d 499, 504 (S.D.N.Y. 2022).

Otherwise, fourth and finally, the privilege is waived. *See SmithKline Beecham Corp. v. Apotex Corp.* 193 F.R.D. 530, 539 (N.D. Ill. 2000) (“[w]here the client is a corporation, the [attorney-client] privilege is waived if the communications are disclosed to employees who did not need to access them.”); *see also Andritz Sprout-Bauer, Inc. v. Beazer East, Inc.*, 174 F.R.D. 609 (M.D. Pa. 1997).

Problematic illustrative entries include documents authored by and circulated among *non-attorneys* (see third element) without any showing that they were created *for the purpose to obtain legal advice* (see second element). Testimony in this proceeding revealed that at least seven non-attorneys were involved in the decision to terminate China United's service contract "for cause"—Doug Heimburger, John Felton, David Cardadeiro, John Anfinson, Becky Moore, Connor Klosky, and Michael Doblinger. Cullinane Decl., Ex. F. (Moore Tr. 35:4-19). Moreover, Amazon's corporate representative testified that **Amazon's decision to terminate China United's service contract "for cause" was a business decision, not a legal decision.** Cullinane Decl., Ex. G. (Cardadeiro Tr. 48:24-49:8). Yet Amazon has shrouded nearly all communications related to the termination "for cause" in privilege. Problematic entries that should be produced and/or unredacted are highlighted in the privilege log attached as Exhibit H. Absent a showing that these communications were made primarily to obtain legal advice (and that the privilege was not waived as required under the fourth element), there is no basis to redact or withhold them. *Cuno, Inc. v. Pall Corp.*, 121 F.R.D. 198.203 (E.D.N.Y. 1988).

Therefore, because Amazon wholly failed to meet its burden to show that the information is privileged and any claim of privilege is not waived, China United requests that the Commission grant its Motion and compel Amazon to produce the documents and information withheld under the improper claim of privilege. If the Presiding Officer has any concern with the waiver of privilege, than China United requests that each of the allegedly "privileged" documents be reviewed by the Presiding Officer, *in camera*, for determination of this important issue.

IV. CONCLUSION

For the reasons stated above, Claimant China United Lines, Ltd. respectfully requests that the Presiding Officer compel Respondent Amazon.com Services LLC to lift the improper redactions and produce the requested documents and information. In the alternative, an *in camera* review of the allegedly privileged documents is requested.

Dated: February 13, 2026

Respectfully submitted,



Bryce Cullinane
Counsel for Complainant, China United Lines

PROOF OF SERVICE

I, David Collins, hereby certify that on this 13th day of February, 2026, a copy of the foregoing **Declaration of Bryce M. Cullinane in Support of Motion to Compel Respondents to Produce Documents Improperly Withheld as Privileged** was served via email, on the following:

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